

minable annuities (*e*). But a bequest of the testator's public funds or government annuities (*f*), or of the "interest, dividends, or income of all monies or stock, and of all other property yielding income at the testator's death" has been held to be specific (*g*).

5. **Conversion directed at a later period.** — And if a testator negative a sale at the time of his death by authorizing or directing a conversion at a subsequent period (*h*); *or if he use any other expressions which assume [*300] the leaseholds or stock to be unconverted when by the general rule it would be converted, the doctrine of conversion is excluded (*a*).

6. **Rule does not assume intention of a sale.** — The rule of the Court under which perishable property is converted does not proceed upon the assumption that the testator in fact intended his property *to be sold* but is founded upon the circumstance that the testator intended the perishable property to be enjoyed by different persons in succession, which is accomplished by means of a sale (*b*). The Court presumes that intention unless a contrary intention appear on the face of the will, and the only difficulty is, what will constitute a sufficient indication of a contrary intention, the more recent decisions allowing smaller indications to prevail than were formerly deemed necessary (*c*).

7. **Rule as to conversion where property is not wasting, but of a class not authorized by the Court.** — The object of the

(*e*) *Blann v. Bell*, 2 De G. M. & G. 775; *Hood v. Clapham*, 19 Beav. 90; and see *Sutherland v. Cooke*, 1 Coll. 503; *Neville v. Fortescue*, 16 Sim. 333; *Pidgeon v. Spencer*, 16 L. T. N. S. 83.

(*f*) *Wilday v. Sandys*, 7 L. R. Eq. 455.

(*g*) *Boys v. Boys*, 28 Beav. 436.

(*h*) *Daniel v. Warren*, 2 Y. & C. C. 290; *Bowden v. Bowden*, 17 Sim. 65; *Burton v. Mount*, 2 De G. & Sm. 383; *Alcock v. Sloper*, 2 M. & K. 699; [*Simpson v. Lester*, 4 Jur. N. S. 1269; *Gray v. Siggars*, 15 Ch. D. 74; *Re Leonard*, 29 W. R. 234; 43 L. T. N. S. 664;] *Hind v. Selby*, 22

Beav. 373; *Skirving v. Williams*, 24 Beav. 275; *Harvey v. Harvey*, 5 Beav. 134; *Hinves v. Hinves*, 3 Hare, 609; *Rowe v. Rowe*, 29 Beav. 276.

(*a*) *Collins v. Collins*, 2 M. & K. 703; see observations on this case in *Vaughan v. Buck*, 1 Ph. 78; *Lichfield v. Baker*, 13 Beav. 451; *Harris v. Poyner*, 1 Drew. 180; and contrast with the last case *Chambers v. Chambers*, 15 Sim. 190.

(*b*) *Cafe v. Bent*, 5 Hare, 35.

(*c*) *Craig v. Wheeler*, 20 L. J. N. S. Ch. 374; *Morgan v. Morgan*, 14 Beav. 82. [See *Macdonald v. Irvine*, 8 Ch. D. 101.]